

No. 26-1
IN THE
SUPREME COURT OF FANTASY FOOTBALL
October Term, 2026 (Expedited to September)
MARC GOLDICH,
Appellant,
v.
GOD EMPEROR COMMISSIONER DYLUK,
Appellee.
SUPPLEMENTAL BRIEF OF AMICUS CURIAE LARRY FLORIO
CONCEDING THE INEVITABLE AND PRESERVING HIS OBJECTION FOR THE
RECORD
LARRY FLORIO
Amicus Curiae, Pro Se
League Member
Still Asleep by 10:30, in Theory
September 2, 2026

STATEMENT

Amicus filed a brief earlier this evening asking the Court to vacate the 10:00 p.m. decree, set the Draft for 8:30 p.m., and impose a timelock on the Commissioner. The brief was six pages. It cited *Howey*. It was, amicus is told, good.

Since filing, amicus has reviewed the record, the group chat, and the Commissioner's stated views on the binding effect of this Court's orders, and has reached a conclusion he now shares with the Court in the interest of candor: the Draft is at 10:00 p.m. It is not moving. It was never going to move. The Commissioner has moved it once, by decree, for a bedtime, and the Commissioner does not move things twice, because that would imply the first move was reviewable, and he has been clear that nothing is.

Amicus therefore withdraws his request for relief. He does not withdraw his objection.

ARGUMENT

I. THE OBJECTION IS PRESERVED.

A party who objects on the record and is overruled has preserved the issue for appeal. Amicus objected. He has been overruled, not by any order of this Court, which has not ruled, but by the

practical reality that the Commissioner scheduled the Draft in the app and every member of the League has already set an alarm. That is an overruling in the only form this League recognizes.

Under Rule 46, a formal exception is unnecessary; it is enough that the party "makes known to the court the action that the party wants the court to take." Amicus has made it known. He wanted 8:30. He is not getting 8:30. The record so reflects, and amicus asks that it continue to reflect it, in perpetuity, so that when the League's next scheduling dispute arrives, as it will, the first sentence of the first filing can cite this one. See The Commissioner Says So, 1 F.F. 1 (perpetual) (establishing that things in this League are perpetual).

II. FUTILITY EXCUSES FURTHER PERFORMANCE, NOT DISPLEASURE.

Amicus is aware of the futility doctrine, under which a litigant need not pursue a remedy that is certain to fail. Amicus invokes it as to the remedy. He does not invoke it as to the displeasure, which is not a remedy and which no doctrine excuses.

Amicus will attend the Draft at 10:00 p.m. He will draft a defense in the fourteenth round because it will be 12:40 a.m. and the defense will be the only thing left that he can spell. He will be awake at 5:30 the following morning for reasons previously briefed. He will do all of this without further motion practice. He will not do it happily, and he wants that noted in the same paragraph as the concession, so that no one reading the record later mistakes acquiescence for consent.

III. ACQUIESCENCE IS NOT WAIVER.

Appellee may argue that by attending the Draft amicus waives his objection to its time. He does not. Waiver is the intentional relinquishment of a known right. Amicus is relinquishing nothing. He is showing up, which is what League members do, and which is different from agreeing. The distinction is well established in every marriage in the League and should be recognized by this Court.

Amicus also reserves the right, in any future proceeding, to say that he told everyone this would happen. That reservation is not a legal argument. It is the only remedy actually available to him, and he intends to use it.

CONCLUSION

The Draft is at 10:00 p.m. Amicus accepts this the way the League accepts everything the Commissioner does: fully, immediately, and under protest. He asks only that the Court note his objection, deny nothing, grant nothing, and adjourn before anyone thinks of something else to file.

Respectfully submitted,

/s/ Larry Florio

LARRY FLORIO

Amicus Curiae, Pro Se

League Member, Objection Preserved,

Alarm Set

September 2, 2026